IN THE SUPREME COURT OF THE STATE OF ARIZONA

Supreme Court No. CV-26-0247-AP/EL
Trial Court No. CV2026-026062

PROTECT EDUCATION,
ACCOUNTABILITY NOW COMMITTEE, et al.,
Plaintiffs/Appellees,

v.

STATE OF ARIZONA, et al.,
Defendants/Appellees,
WARREN PETERSEN, et al.,
Intervenor-Defendants/Appellants,
and
NICKOLAS KUPPER, et al.,
Intervenor-Defendants/Appellees.

OPENING BRIEF OF LEGISLATIVE APPELLANTS

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Intervenor-Defendant/Appellants Warren Petersen, in his official capacity as the President of the Arizona State Senate, and Steve Montenegro, in his official capacity as the Speaker of the Arizona House of Representatives, respectfully submit this Opening Brief.

INTRODUCTION

Semantically, House Concurrent Resolution 2048 consists of two substantive subsections. Conceptually, it encapsulates a unitary and narrow public policy: any bill or measure that confiscates certain scholarship funds from military families (as defined) is void in its entirety. That is it. Two foundational errors afflicted the trial court's conclusion that HCR 2048 proposes more than one "amendment," in violation of the so-called Separate Amendment Rule in Article XXI, § 1 of the Arizona Constitution.

First, the trial court elevated stylistic paragraphing and punctuation conventions to determinants of constitutional validity. HCR 2048 is organized into two primary provisions. Subsection (A) protects from confiscation certain scholarship funds awarded to children of military families. Subsection (B) provides that any bill or measure violating Subsection (A) is void in its entirety and not subject to severing.[1] The crux of the trial court's holding was that "Subsection A derives no meaning or effect from the existence of Subsection B." Ruling at 6. But the Separate Amendment Rule queries only whether the provisions collectively constitute "a unified pronouncement" on a discrete policy question, *Arizona Together v. Brewer*, 214 Ariz. 118, 123 ¶ 17 (2007)—not whether they are "logically dependent on one another." *Save Our Vote C-03-2012 v. Bennett*, 231 Ariz. 145, 150 ¶ 15 (2013). The happenstance division of an amendment into multiple subsections does not proportionally increase the number of "policies" it

[1] Subsection (C) simply defines certain terms used in the other provisions. A true and correct copy of HCR 2048 is attached as Exhibit A.

contains. HCR 2048 denotes a "unified pronouncement" that any law that seizes certain defined scholarship funds is invalid on its face. Indeed, the Legislature could have condensed HCR 2048 to a single sentence—to wit: "any law that confiscates money from any scholarship account of any student who is a child of a military is void in its entirety…."—without changing its meaning or import in the slightest.

Second, the trial court construed severability as a freestanding fount of judicial or legislative power.[2] It is neither. Courts employ severability as an interpretive tool, not an exercise of autonomous will. Legislative bodies sometimes insert severability clauses as a contingency measure, to salvage statutes that later are found to include unconstitutional elements. But these directives are not themselves substantive legislative acts. HCR 2048 makes questions of severability with respect to laws that seize protected scholarships accounts superfluous. But by eliminating the remedy of severability in one narrow subject matter context (to wit, statutes that confiscate military family scholarships), Subsection (B) does not independently abridge the Legislature's or the People's power to "create[], define[] and regulate[] rights," *Seisinger v. Seibel*, 220 Ariz. 85, 92 ¶ 29 (2009), by statute.

More fundamentally, the trial court's ruling converts the Separate Amendment Rule from a "procedural" stricture concerned only with the "form" of a proposition, *Tilson v. Mofford*, 153 Ariz. 468, 471 (1987), into a de facto constraint on the amendment power itself. The Legislature or the People undisputedly could propose a constitutional amendment that prohibits severability in categorical terms (e.g., "The unconstitutional provisions of a statute or measure shall not be

[2]Plaintiffs/Appellees' understanding of severability in relation to judicial and legislative powers has been somewhat of a moving target. Their complaint alleged (at ¶ 50) that HCR 2048 "strips courts of the severance authority." Perhaps belatedly realizing that the Legislature's routine use of (in)-severability clauses discredits the notion that severability is a constitutional power of the judiciary, they later insisted that this "severance authority" actually belongs to the legislative branch.

severed from the constitutional provisions"). It follows that an amendment likewise could foreclose severability only in single and surgically defined public policy domain. In effectively placing modifications of "severance authority" (if such a thing exists at all as a self-contained constitutional concept) beyond the ken of Article XXI, the trial court's reasoning evinces a more transcendent and consequential misunderstanding of the Separate Amendment Rule.

ARGUMENT

Article XXI, § 1 of the Arizona Constitution provides, in relevant part, that "[i]f more than one proposed amendment is submitted at any election, the proposed amendments shall be submitted in such a manner that the electors may vote for or against such proposed amendments separately." This so-called Separate Amendment Rule requires the constituent provisions of an amendment to be "sufficiently related to a common purpose or principle that the proposal can be said to 'constitute a consistent and workable whole on the general topic embraced,' that, 'logically speaking, . . . should stand or fall as a whole.'" *Korte v. Bayless*, 199 Ariz. 173, 177 ¶ 10 (2001) (citations omitted). Animating this framework, though, is a recognition that the Legislature need not employ "the most narrowly tailored means for achieving identified goals," *Save Our Vote*, 231 Ariz. at 151 ¶ 21.

This Court has distilled the Separate Amendment Rule into two facets. First, the provisions of a proposed amendment must be "topically related." Second, the provisions also must be "sufficiently interrelated" to each other. *Arizona Together*, 214 Ariz. at 121 ¶ 6. HCR 2048 complies with both elements.

I. HCR 2048's Two Provisions Relate to the Single "Topic" of Protecting Scholarship Accounts for Military Families

Even the trial court had no trouble recognizing that HCR 2048's provisions "embrace the same general topic," namely, "the protection of scholarship accounts for military families."

Ruling at 3. The trial court was right on this point. The topicality rubric is permissive, and "most proposed constitutional amendments will easily pass through this initial screen." *Arizona Together*, 214 Ariz. at 127 ¶ 32 (Hurwitz, J., concurring); *see also McLaughlin v. Bennett*, 225 Ariz. 351, 354 ¶ 9 (2010) (holding that even provisions governing disparate contexts of public elections and private labor union elections "arguably are topically related").

II. HCR 2048's Provisions Are Facially, Textually, and Qualitatively Interrelated

The "sufficient interrelatedness" inquiry examines the relationship of the amendment's provisions to one another by balancing "objective factors," such as whether the provisions (1) "are facially related," (2) "concern a single section of the constitution," (3) have been "historically . . . treated" as a single subject, and (4) "are qualitatively similar in their effect on either procedural or substantive law." *Arizona Together*, 214 Ariz. at 122 ¶ 10. These criteria, though, "might not all apply in a particular case." *Save Our Vote*, 231 Ariz. at 150 ¶ 15.

A single, debilitating flaw haunts Appellees' arguments on each of the "interrelatedness" elements: HCR 2048 will have no effect whatsoever on any law—or any judicial application of a law—that does not confiscate military families' scholarship accounts. That irreducible fact underscores that HCR 2048's two provisions, both by their own terms and in any future application of them, are bound by a "common purpose or principle." *Id.* at 121 ¶ 6.

A. Facial Relatedness

Subsection (A) of HCR 2048 prohibits the confiscation of scholarship accounts awarded to children of military families; Section (B) renders entirely void *ab initio* any bill or measure that directs such a confiscation. Both provisions govern the same context, i.e., laws that disgorge military families' scholarships; conversely, neither provision affects laws that do not touch those monies. *See McLaughlin*, 225 Ariz. at 354 ¶ 12 (explaining that facial relatedness concerns whether the provisions apply in the same "contexts," although "complete overlap" is not

required). That interwoven element—indeed, the Subsection (B)'s operation is entirely dependent on Subsection (A)—suffices to establish facial interrelatedness. *See Save Our Vote*, 231 Ariz. at 150 ¶ 16 (holding that provision eliminating partisan primaries shared a facial relationship with provision banning use of public funds for certain political party activities); *Korte*, 199 Ariz. at 176, 178 ¶¶ 8, 15 (finding that proposed amendment's provisions were interrelated, even though they affected various and diverse facets of state trust land growth management). The trial court hence was correct in finding that HCR 2048's provisions are facially interrelated.

Appellees contend that facial relatedness is lacking because Subsection (B) may reach portions of statutes that do not concern military family scholarship accounts. But the facial relatedness inquiry does not demand that the provisions be conterminous. *See Save Our Vote*, 231 Ariz. at 151 ¶ 21 (rejecting the notion that provisions must be "narrowly tailored means for achieving identified goals," and adding that "[n]or does the fact that a proposition, if adopted, would require extensive statutory changes necessarily suggest that the proposition violates the separate amendment rule"). More to the point, Subsection (B) would have this preemptive effect only if this hypothetical statute also confiscates protected accounts and thus violates Subsection (A)—an intertwinement that attests to the provisions' facial interrelatedness.

B. Textual Relatedness

HCR 2048's textual scope is confined to a single new section (i.e., Section 12) of one article of the Arizona Constitution (i.e., Article XI), which is titled "Education." A proposed amendment that simply adds a single section consisting of two discrete provisions is *per se* a textually interrelated act. *See Arizona Together*, 214 Ariz. at 122 ¶ 12 (finding textual interrelatedness where provisions of the proposed amendment "involve[d] a single section of the

constitution"); *Korte*, 199 Ariz. at 175, 176 ¶¶ 5, 8 (rejecting challenge to a multi-section proposed amendment).

The trial court held that by preventing the severance of future statutes that seize protected military family scholarships, HCR 2048 "effectively" amends the Voter Protection Act, the judicial power conferred by Article VI, and the legislative power found in Article IV. Ruling at 4–5. Its analysis is wide of the mark.

1. Voter Protection Act

The trial court's exertions to forge a link between HCR 2048 and the Voter Protection Act in Article IV, Part 1, § 1(6) ("VPA") flounder because the two provisions not only do not overlap —they operate on entirely separate constitutional planes. The VPA does not confer or recognize any affirmative right to adopt via the initiative process a law concerning ESA scholarships for military families—or anything else, for that matter. Rather, it merely says that if a (constitutionally valid) statute is approved by the electorate, then the Legislature may not subsequently amend it unless it can muster a three-fourths majority in each chamber and the amendment "furthers the purposes" of the initiative. In other words, the VPA "limits only legislative actions that amend or supersede a statute passed by the voters." *Montenegro v. Fontes*, 260 Ariz. 443 ¶ 37 (2025).

HCR 2048, by contrast, does not textually or conceptually intersect with the VPA at all. It codifies a substantive constitutional proscription against confiscations of certain scholarship funds, whatever other provisions those laws might also contain. It does nothing to abrogate the VPA's constraints on legislative amendments to voter initiatives. A hypothetical illustrates the point. Assume that HCR 2048 is adopted, and either concurrently or sometime later, the voters approve a statute that would confiscate protected scholarship funds. That statute would remain subject to the VPA; the Legislature would be powerless to amend or repeal it. To be sure, a

proper plaintiff could challenge the statute in court as inconsistent with the new Article XI, § 12. But the determination and resolution of that claim would not directly or indirectly implicate the VPA, which "does not enlarge the constitutional authority of the people; it only protects their valid legislative handiwork against legislative modification." *Montenegro*, 260 Ariz. 443 ¶ 36. In that vein, the trial court's reasoning proves too much. If preempting future contrary statutes were an *ipso facto* amendment to the VPA on the rationale that it abridges voters' lawmaking powers, then no new constitutional provision could ever survive a Separate Amendment Rule challenge.

2. Judicial Power

The trial court's finding that HCR 2048 effectively amends Article VI by eliminating the option of severing laws that confiscate military family scholarship accounts is constructed on an infirm premise. There is no such thing as a judicial "power" to sever statutory provisions, at least not in any sense that is constitutionally cognizable.

The essence of "[t]he Judicial power is the power of a court to decide and pronounce a judgment and carry it into effect between persons and parties who bring a case before it for decision." *Stuart v. Norviel*, 26 Ariz. 493, 501 (1924). That is to say, courts apply the law to arbitrate the rights or duties of specific persons within the confines of particular facts. *See San Carlos Apache Tribe*, 193 Ariz. 195, 212 ¶ 38 (1999) (only courts may undertake "determining contested facts and applying the laws to those facts").

Judicially-created principles of statutory construction are not an independent locus of constitutional authority that constrain or condition statutes themselves. Rather, they are "merely meant as aids to determine [legislative] intent." *Keller v. State*, 46 Ariz. 106, 117 (1935); *see also Greyhound Parks of Ariz., Inc. v. Waitman*, 105 Ariz. 374, 379 (1970) (Lockwood, C.J., specially concurring) ("Rules of statutory construction are merely guideposts for determining an ultimate result—the intent of the legislative body"). Once it discerns an intended and constitutionally

sound meaning of a statute, the court then exercises the judicial power of applying the law to the facts before it to produce a binding disposition of the parties' rights and duties.

The severability doctrine derives from exactly this framework. It is a means of distilling a statute's intended application—not an extrinsic judicial power unto itself. Indeed, if anything, severance is a gesture of judicial restraint. *See Barr v. Am. Ass'n. of Political Consultants, Inc.*, 591 U.S. 610, 627 (2020) (plurality op.) (noting that a "presumption" of severability "manifests the Judiciary's respect for Congress's legislative role by keeping courts from unnecessarily disturbing a law apart from invalidating the provision that is unconstitutional"). This Court has explained that severability encapsulates the principle that courts "will not . . . declare an entire statute 'unconstitutional if the constitutional portions of the statute can be separated from that which is unconstitutional.'" *Randolph v. Groscost*, 195 Ariz. 423, 427 ¶ 13 (1999) (citation omitted). But as that formulation expresses, the question of which provisions of a statute are severable is subordinate to—and "downstream" of—the antecedent question of which provisions of the statute are constitutionally valid in the first place. If the voters approve it, HCR 2048 directs that every provision of a bill or measure that confiscates protected scholarship accounts is unconstitutional; the question of severability thus would never become ripe or relevant to a court in the first place. HCR 2048 hence does not "amend" Article VI.

3. Legislative Power

The trial court's conclusion that Subsection (B) "effectively amend[s]" Article IV is untenable for two reasons. First, a severability clause is not itself a legislative "power." Legislation "prescribes a new policy or plan." *Wennerstrom v. City of Mesa*, 169 Ariz. 485, 489 (1991) (citation omitted); *see also Seisinger*, 220 Ariz. at 92 ¶ 29 (explaining that substantive law, which is the Legislature's domain, "creates, defines and regulates rights"). A severability clause would never—and could never—be adopted in isolation. By its nature, it is ancillary and

incidental to some other substantive legislative act and expresses a procedure for applying it on the contingent condition that some of its provisions are unconstitutional. It follows that by precluding severance of bills or measures that violate Subsection (A), Subsection (B) does not abrogate any separate or independent facet of legislative power.

Second, even assuming that severability clauses embody a legislative "power," the trial court's statement that Subsection (B) "would effectively amend the legislative power . . . to not declare entire statutes unconstitutional" (Ruling at 4) approaches the tautological. Almost by definition, any constitutional amendment will "amend" the legislative power to adopt a law that is inconsistent with it. If the voters approve it, HCR 2048 will preempt only laws that contain confiscations of military families' scholarship accounts. Conversely, if a future statute does not touch that specific class of scholarship accounts, then HCR 2048 leaves it undisturbed. It is not substantively different, in any constitutionally relevant sense, from any other amendment that cabins the legislative power in a specifically defined policy domain. *See, e.g.*, Ariz. Const. art. II, § 8.1 (curbing the Legislature's authority over the issue of abortion, and prescribing a test for courts to apply to such laws).

For exactly this reason, the Court has held repeatedly that the Separate Amendment Rule permits a proposition to incidentally modify a legislative or judicial power if it does so only in connection with the amendment's substantive provisions. *See Slayton v. Shumway*, 166 Ariz. 87, 92 (1990) (provision reassigned certain rulemaking powers to the Legislature, but only in connection with the amendment's substantive provisions); *Smith v. Fontes*, 2024 WL 3994928, at *3 (Ariz. Aug. 22, 2024) (finding no Separate Amendment Rule violation where proposed amendment modified Legislature's authority over general election voting procedures). More troublingly, the trial court's misconception of severability as a freestanding legislative power

implies that no constitutional amendment could ever modify it—or, at the very least, that every proposed amendment curtailing severability must "be presented in two bites—one for the substance of the Act and one to address" severability—an implausible conclusion. *Smith*, 2024 WL 3994928, at *3.

C. Historical Relatedness

In holding that the historical interrelatedness prong favors Appellees, the trial court inverted the burden of proof. Appellees bear the burden of rebutting a "strong presumption supporting [HCR 2048's] constitutionality." *Hoffman v. Reagan*, 245 Ariz. 313, 316 ¶ 13 (2018). The Legislature is not obligated to assemble a catalogue of historical precedents as a condition of exercising its authority under Article XXI, § 1. Appellees presented no evidence that either the Legislature or the People have ever parceled into separate votes amendments to Article XI's substantive terms and amendments addressing severability or other remedial questions.

The non-existence of historical analogues for HCR 2048 is just that: the absence of evidence supporting Appellees' claim that HCR 2048 departs from historical practices for addressing questions of severability or similar remedies in the constitutional context. *See Arizona Together*, 214 Ariz. at 123 ¶ 15 ("Because Arizona has not historically treated the definition of marriage in the state constitution, we find little guidance from this factor."); *McLaughlin*, 225 Ariz. at 357 ¶ 28 (Hurwitz, V.C.J., concurring) ("Although the fact that topics have been treated together historically provides some evidence of logical interrelatedness, the converse is not necessarily true."). The trial court's reasoning implies that constitutional amendments addressing new policy issues or pioneering a novel approach to an existing question are, at least respect to the historical interrelatedness inquiry, presumptively unconstitutional—a strange supposition that finds no sustenance in this Court's precedents.

D. Qualitative Relatedness

The conceptual axis around which each of HCR 2048's two principal provisions revolves is preempting laws that would confiscate certain scholarship funds for children of military families. They hence are qualitatively interrelated—that is to say, they both affect substantive law in the same fundamental way. *See Arizona Together*, 214 Ariz. at 122 ¶ 10 (explaining that provisions that are "qualitatively similar in their effect on either procedural or substantive law" are likely to be interrelated). Indeed, the two provisions are complementary; Subsection (A) establishes a constitutional immunity for the scholarship accounts and Subsection (B) invalidates in its entirety any contemporaneously or subsequently enacted bill or measure that violates Subsection (A). An ineluctable corollary is that a law that does not seize the relevant scholarship funds in violation of Subsection (A) will not be impacted by Subsection (B).

The trial court's conclusion that "Subsection A does not need Subsection B" (Ruling at 6) manifests two consequential legal errors. First, the Separate Amendment Rule "does not require 'that all components of a provision be logically dependent on one another.'" *Save Our Vote*, 231 Ariz. at 150 ¶ 15 (emphasis added). A corollary is that the rule likewise "does not require that a constitutional amendment identify the most narrowly tailored means for achieving identified goals." *Id.* at 151 ¶ 21. The notion that each provision of an amendment must be "necessary" to the other's effectuation finds easy refutation in this Court's precedents. *E.g.*, *Smith* 2024 WL 399428, at *2 (proposed amendment would have eliminated partisan primaries, adopted ranked-choice voting methods in general elections, and placed limitations on certain uses of public funds); *Korte*, 199 Ariz. at 176 ¶ 8 (proposed amendment addressed sales of trust lands, agricultural uses, disposition of revenues, and conservation designations).

Second, and more fundamentally, the trial court arbitrarily denoted HCR 2048's purported 'purpose' solely by reference to Subsection (A). But "no mechanism is available for

courts to discern [an] act's primary subject." *Ariz. Sch. Bds. Ass'n., Inc. v. State*, 252 Ariz. 219, 228 ¶ 37 (2022). And even if there were, there is no reason why HCR 2048's "primary" purpose is not reified instead in Subsection (B)—i.e., that any law confiscating protected scholarships is void in its entirety. Under that premise, Subsection (A) inarguably is qualitatively related to—and indeed is completely subsumed within—Subsection (B).

That reality, in turn, illuminates the actual essence of the trial court's ruling: that Subsection (B), by itself, violates the Separate Amendment Rule. And that conclusion is as discordant with this Court's precedents as it is with common sense. The preoccupation animating the Appellees' claim (and the trial court's embrace of them) is a belief that HCR 2048 will nullify the so-called 'Protect Education Act' initiative measure and/or other future laws that regulate the Empowerment Scholarship Account ("ESA") program in a manner that extends beyond military family scholarships.

But assuming arguendo that this is true, so what? Even if HCR 2048 preempted the entire field of ESA regulation—for example, if it stated something like: "no law may limit, abrogate, or abolish the Empowerment Scholarship Account program in any manner whatsoever"—it would pose no constitutional conundrum. The proposed amendment that the Court sustained in *Arizona Together* would have displaced contrary understandings of the concept of marriage in virtually every legal context. *See* 214 Ariz. at 123 ¶ 17. The provisions of a multifaceted amendment that would have affected nearly every aspect of the growth and management of state trust lands, including sales, agricultural leases, and advertising, were deemed qualitatively interrelated. *See Korte*, 199 Ariz. at 176, 178 ¶¶ 8, 15. So, even if HCR 2048 would effectively preempt all ESA regulations,[3] HCR 2048 still would "comprise a unified pronouncement on the state's

[3]It bears emphasis that future legislators or initiative proponents could avert this preemptive effect entirely simply by drafting the legislation to insulate accounts belonging to military

constitutional understanding of" parents' and students' rights with respect to school choice funding. *Arizona Together*, 214 Ariz. at 123 ¶ 17. And because no statute or initiative measure could concomitantly address both the ESA program and unrelated subjects, *see* Ariz. Const. art. IV, pt. 1, § 1(9); art. IV, pt. 2, § 13, Subsection (B) could never nullify a law that does not affect the ESA program.

At bottom, the trial court's ruling was propelled by a conviction that Subsection (B)'s non-severability provision does "not represent the only approach that could be taken to address the" protection of military families' scholarship accounts. *Slayton*, 199 Ariz. at 178. "But those arguments speak more to the wisdom of approving the underlying purpose of the propositions involved, a decision left to the voters, than to whether [HCR 2048] complies with the [separate amendment] rule." *Id.*

CONCLUSION

For the foregoing reasons, the Court should reverse the trial court's judgment, and direct the Secretary of State to certify HCR 2048 for placement on the November 3, 2026 general election ballot.

RESPECTFULLY SUBMITTED this 4th day of August, 2026.

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families, which Appellees themselves claim represent only about 1% of the ESA program's enrollment.